

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF BRONX-----X
NAHMIR GLASS,

Plaintiff,

Index No.:

Date Purchased:

- against -

SUMMONSCITY OF NEW YORK, POLICE OFFICER "JOHN"
SAMPATH, individually and in his official capacity,
POLICE OFFICERS "JOHN DOES 1-10", individually
and in their official capacities, fictitious names used to
identify presently unknown police officers,

Basis of Venue is CPLR §504

Defendants.
-----X

To the above named defendant(s):

YOU ARE HEREBY SUMMONED to answer the complaint in this action and to serve a copy of your answer, or, if the complaint is not served with this summons, to serve a Notice of Appearance, on the Plaintiff's attorney(s) within twenty (20) days after the service of this summons, exclusive of the day of service (or within thirty (30) days after the service is complete if this summons is not personally delivered to you within the State of New York); and in case of your failure to appear or answer, judgment will be taken against you by default for the relief demanded in the complaint.

Dated: Brooklyn, New York

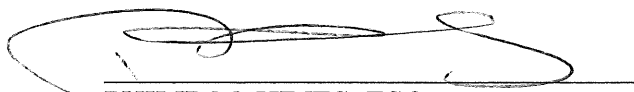
October 21, 2015

Defendant's Address:

CITY OF NEW YORK
100 Church Street
New York, New York 10007POLICE OFFICER "JOHN" SAMPATH
Precinct 46
2120 Ryer Avenue
Bronx, New York 10457

Yours, etc.,

HELD & HINES, L.L.P.



PHILIP M. HINES, ESQ.

Attorneys for Plaintiff
Office and P.O. Address
2004 Ralph Avenue
Brooklyn, New York 11234
Tel: (718) 531-9700
Fax: (718) 444-5768

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF BRONX

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NAHMIR GLASS,

Plaintiff,

- against -

CITY OF NEW YORK, POLICE OFFICER "JOHN"
SAMPATH, individually and in his official capacity,
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Index No.:

VERIFIED COMPLAINT

Plaintiff, NAHMIR GLASS, by his attorneys, HELD & HINES, LLP, as and for his
Verified Complaint, hereinafter states and alleges as follows, upon information and belief:

1. At all times mentioned herein, the plaintiff was and remains a resident of the State
of New York.

2. Upon information and belief, and at all times mentioned herein, the defendant,
City of New York (hereinafter referred to as the "City"), was and remains a body corporate and
politic, constituting a municipal corporation, duly organized and existing under and by virtue of
the laws of the State of New York.

3. Upon information and belief, and at all times mentioned herein, the City
maintains the New York City Police Department (hereinafter referred to as the "NYPD"),
pursuant to law.

4. Upon information and belief, and at all times mentioned herein, the NYPD was
and remains under the supervision and control of the City.

5. Upon information and belief, and at all times mentioned herein, the NYPD was

and remains a department, division or agency of the City.

6. Upon information and belief, and at all times mentioned herein, Defendant, POLICE OFFICER “JOHN” SAMPATH, (hereinafter referred to as “PO SAMPATH”), is a resident of the State of New York.

7. At all times mentioned herein, PO SAMPATH was a police officer employed by the City.

8. At all times mentioned herein, Defendant Police Officers John Doe (“PO John Does”), were NYPD police officers¹ employed by the City.

9. The identities of the PO John Does are not presently known, but they are believed to be police officers and supervisory personnel endowed and bestowed with various ranks and appointments upon them by the City and/or NYPD, and are sued in their capacities as individuals as well as in their official capacities as police officers acting under the color of law.

10. The PO John Does were those individuals who used excessive physical force on Plaintiff; assaulted and battered Plaintiff without legal justification; violated Plaintiff’s civil and common law rights while acting under color of state law; drafted and filed, or conspired to file, knowingly false incident reports and arrest and complaint reports regarding the subject incident; falsely arrested, detained and imprisoned Plaintiff; maliciously prosecuted, ignored, refused and denied Plaintiff’s access to timely medical attention for the injuries alleged herein; gave knowingly false statements; failed to report or truthfully report the incidents alleged herein; and/or took specific and definitive measures to cover up evidence of their own and/or other officers’ unlawful activities.

11. Upon information and belief, and at all times mentioned herein, the City was

¹ As used herein, the term “police officer” is intended to refer to members of service of the New York City Police Department in the general and not to any specific rank, title or position.

charged with the hiring, training, retention, direction, supervision, discipline, oversight, appointment and promotion of the NYPD officers, supervisors and staff in their employ, including but not limited to PO Sampath the PO John Does herein.

12. Upon information and belief, and at all times mentioned herein, the City and NYPD, their agents, servants and/or employees, managed, supervised, directed and/or controlled the custody, confinement, care and treatment of those persons arrested, confined and/or otherwise detained in its various precincts and jails, including but not limited to the plaintiff.

STATEMENT OF FACTS

13. On or about October 25, 2014 at approximately 3:35 a.m., Plaintiff had just exited Maximo's Place, located at 1880 Carter Avenue, Bronx, New York, when a group of unknown individuals attempted to start a fight with Plaintiff and his friends. Plaintiff walked over to the defendant police officers nearby to alert them of the impending altercation so as to avoid getting injured or arrested. After Plaintiff spoke with the defendant police officers, an officer used excessive physical force on Plaintiff such that he tackled Plaintiff to the ground without legal cause or justification, causing Plaintiff to hit his head, lose consciousness and sustain scrapes and other injuries to his body, the left side of his forehead, both of his knees, his right thumb and right elbow. The Defendants then falsely arrested Plaintiff, held Plaintiff in custody for approximately three (3) hours, falsely charged Plaintiff with crimes said officers knew Plaintiff had not committed in an effort to cover-up and allege justification for their aforesaid unlawful and excessive use of force, and released Plaintiff with four (4) desk appearance tickets. As a result of the foregoing, Plaintiff suffered physical, psychological and emotional injuries, loss of liberty and pecuniary loss.

14. The Defendant's failed to provide Plaintiff with any medical treatment.

15. The foregoing use of force was excessive and lacking any legal justification.

16. Immediately prior to being tackled to the ground, Plaintiff was not a threat, immediate or otherwise, to PO SAMPATH, PO JOHN DOES, or the public.

17. No reasonable police officer would have perceived Plaintiff's conduct to be aggressive or confrontational such that would require or warrant an officer to intentionally strike Plaintiff.

18. At no time prior to the defendant's tackling Plaintiff to the ground did any other NYPD officer attempt to defuse any perceived situation by issuing a verbal command or warning to Plaintiff or by using non-contact control techniques.

19. Defendants could have avoided using force on Plaintiff, but neglected or refused to do so.

20. Defendants used unlawful and excessive physical force upon Plaintiff.

21. Defendants subjected Plaintiff to cruel, unusual, inhumane, humiliating and degrading treatment.

22. Defendants subjected Plaintiff to unnecessary and wanton infliction of pain.

23. Defendants conduct was grossly disproportionate to the circumstances then and there existing.

24. Defendants did not need to use physical force and/or inflict blows upon Plaintiff as Plaintiff was not physically threatening to Defendants.

25. Defendants did not need to use physical force and/or inflict blows upon Plaintiff in self-defense, in order to maintain order, in order to enforce observation of discipline, or in order to secure or control Plaintiff.

26. At no point during the time period mentioned herein did Plaintiff neglect or refuse

a lawful order of a police officer or rule or regulation of NYPD, nor did he resist or disobey any lawful command of a police officer, nor did he offer violence to any officer or other detainee, nor did he injure or attempt to injure NYPD property, nor did he attempt to escape, nor did he attempt to lead or take part in a revolt or insurrection.

27. Defendants falsely arrested and imprisoned Plaintiff.

28. Defendants removed Plaintiff from the aforesaid location and transported him to the 46th Precinct.

29. Defendants maliciously initiated criminal proceedings against Plaintiff in an effort to cover up their unlawful conduct.

30. All charges were dismissed against Plaintiff on March 23, 2015.

31. Plaintiff was released from the defendants' custody at approximately 6:35 a.m.

32. Plaintiff was unlawfully confined, detained and imprisoned by Defendants for approximately three (3) hours.

33. At no point during the aforesaid time period did any police officer or supervisor intervene, protect, or come to the aid or defense of Plaintiff.

34. As a result of the foregoing incident, Plaintiff suffered physical injuries of an objectively serious and important nature; however, Defendants failed to authorize, make arrangements and provide transportation for Plaintiff to receive any medical care or treatment while he was in their custody for three (3) hours.

35. Plaintiff's medical condition was of such gravity that it can be considered a serious medical condition. Defendants, by ignoring Plaintiff's requests for treatment, acted with deliberate indifference.

36. The failure of the defendants to provide due and timely medical care and

treatment to the plaintiff caused further and substantial harm to the plaintiff, including but not limited to increased and prolonged pain, and psychological and emotional injuries.

CONDITIONS PRECEDENT

37. On or about January 16, 2015, Plaintiff caused a Notice of Claim to be electronically filed with the Comptroller of the City of New York, setting forth the time, place, and substance of the claims alleged herein, as well as a description of injuries sustained by the plaintiff.

38. On or about March 25, 2015, the City of New York conducted a hearing of Plaintiff pursuant to Section 50-h of the General Municipal Law.

39. More than thirty (30) days have elapsed since the filing of the Notice of Claim and the defendants have neglected and/or refused to make an adjustment thereof.

40. This action was commenced, including all applicable tolls, within a year and ninety days after said causes of action arose.

41. This action falls within one or more of the exceptions set forth in CPLR §1602.

AS AND FOR A FIRST CAUSE OF ACTION: VIOLATIONS OF PLAINTIFF'S CIVIL RIGHTS

42. Plaintiff repeats, reiterates and realleges each and every allegation of paragraphs "1" through "41", inclusive, of this Complaint, as if same were fully set forth herein.

43. As set forth above, Defendants, acting under the color of law, did assault, batter and use excessive physical force on Plaintiff; did use force on Plaintiff as punishment; did falsely arrest Plaintiff; did falsely imprison Plaintiff; did maliciously prosecute Plaintiff; did ignore, refuse, deny and/or delay Plaintiff's access to timely and reasonable medical care; did knowingly draft and/or file false reports, incident reports, criminal complaints and/or medical reports in an

effort to cover-up evidence of their unlawful activities; and were deliberately indifferent to Plaintiff's medical needs, all without legal cause or justification and with purposeful intent to cause harm to Plaintiff.

44. As set forth above, the defendants failed to notify City or federal authorities as to what they had seen and/or heard, as required by law.

45. As set forth above, the defendants failed to take appropriate action to investigate and report the subject incident, as required by law.

46. As set forth above, the subject incident, as well as the defendant officers' ignoring, acquiescence, joining and/or complicity in same, constituted an unnecessary, unreasonable, and excessive use of force.

47. Said defendants acted with deliberate indifference to the plaintiff's safety, security, health and immediate medical needs.

48. As a direct and proximate result of the defendants' deliberate indifference to Plaintiff's objectively serious medical condition, the plaintiff's resulting physical, psychological and emotional injuries, pain and suffering were significantly exacerbated and his recovery compromised.

49. As set forth above, these defendants have made every effort to conceal the truth about what actually occurred, including but not limited to covering up, or attempting to cover up, the illegal conduct complained of herein.

50. The defendants' aforesaid acts and omissions violated the plaintiff's clearly established civil rights and were the direct and proximate cause of the physical, psychological, and emotional injuries he suffered.

51. The actions of the defendant officers were malicious in the instance.

52. The City and NYPD have had, and continue to have, a custom and practice of deliberate delay and avoidance in investigating allegations of abuse and other misconduct by their officers, to the detriment of the plaintiff.

53. The defendant officers, by reasonable diligence, could have prevented the aforesaid wrongful acts from being committed.

54. The defendant officers, by reasonable diligence, could have mitigated the plaintiff's injuries had they intervened in the aforesaid unlawful conduct and/or protected Plaintiff.

55. As a result of the foregoing, Plaintiff was caused to be subjected to the deprivations of rights, loss of liberty, physical, psychological and emotional injuries, pecuniary loss, and has been otherwise damaged thereby.

**AS AND FOR A SECOND CAUSE OF ACTION:
CONSPIRACY**

56. Plaintiff repeats, reiterates and realleges each and every allegation of paragraphs "1" through "55", inclusive, of this Complaint, as if same were fully set forth herein.

57. The City, NYPD supervisors, PO Sampath and PO John Does, acting under the color of law, willfully conspired with one another and others, including but not limited to the Bronx County District Attorney's Office, to deprive the plaintiff of his civil rights, including but not limited to his right: to be free from cruel and unusual punishment; to be free from the use of unreasonable and/or excessive force; to be free from false arrest and imprisonment; to be free from malicious prosecution; to be free from unreasonable delay of medical attention; to be free from harassment and intimidation; to be free from retaliation for exercising his First Amendment rights; and to associate and speak freely.

58. It was part of said conspiracy that said defendants did commence criminal proceedings against Plaintiff; did deny due and necessary medical care and treatment to the plaintiff; did fail to protect the plaintiff from known and/or avoidable harm while he was in their custody; did file false criminal charges against Plaintiff; did deliberately suppressing the truth; and did submit false reports, statements and/or testimony to support and corroborate the fabricated allegations lodged against the plaintiff, for their own benefit.

59. Defendants had knowledge that a conspiracy was in progress, had the power to prevent or aid in preventing the conspiracy from continuing, and neglected or refused to do so.

60. With due diligence, NYPD officers and supervisors could have promptly reported the subject events to superiors and to duly authorized investigators. Their failure to do so has allowed the conspiracy to continue and the truth be suppressed.

61. Had said defendants complied with the law and furnished truthful information to authorities about their conduct, the conspiracy would not have succeeded to the extent that it has.

62. As a proximate and direct cause of said defendants' conduct, Plaintiff was caused to be subjected to the deprivations of rights, loss of liberty, physical, psychological and emotional injuries, pecuniary loss, and has been otherwise damaged thereby.

**AS AND FOR A THIRD CAUSE OF ACTION:
ASSAULT AND BATTERY**

63. Plaintiff repeats, reiterates and realleges each and every allegation of paragraphs "1" through "62", inclusive, of this Complaint, as if same were fully set forth herein.

64. As set forth above, Plaintiff was assaulted and battered by PO Sampath and PO John Does.

65. The aforesaid uses of physical force against Plaintiff were excessive, unnecessary, unprovoked and unlawful.

66. As a result of the foregoing, Plaintiff suffered and continues to suffer severe and serious physical, psychological and emotional injuries, violation of his civil and due process rights, and pecuniary loss.

**AS AND FOR A FOURTH CAUSE OF ACTION
NEGLIGENCE**

67. Plaintiff repeats, reiterates and realleges each and every allegation of paragraphs “1” through “66”, inclusive, of this Complaint, as if same were fully set forth herein.

68. The City, its agents, servants and employees, including but not limited to the defendants named herein, were negligent in the instance in their ownership, operation, supervision, enforcement, maintenance, inspection and control of its precincts and offices in the instance; in failing to reasonably and adequately supervise and control its officers; in failing to protect the safety, health and welfare of the plaintiff; in failing to quickly and diligently intercede on behalf of Plaintiff; in setting a trap for the plaintiff; in failing to take cognizance of a dangerous and escalating situation; in failing to have an adequate policy to curtail officer-related violence; in failing to take reasonable measures and precautions to avoid and/or mitigate the incidence of officer-related violence; in violating the plaintiff’s civil, statutory and common law rights; in infringing upon the freedoms afforded to the plaintiff; in being deliberately indifferent to the plaintiff’s health, safety, and security; in causing and allowing the officers of the 80th Precinct to act and operate in a violent and dangerous manner towards the public; in causing, creating and/or allowing unlawful conditions to be and remain; in failing to have a policy that adequately addresses officer-related violence; in having a policy, either written or by custom,

which accepts and/or promotes officer-related violence; in having a policy, either written or by custom, which accepts and/or promotes officer disinterest, indifference, apathy and/or uninvolved during incidents of officer-related violence; in failing to timely prevent and/or mitigate the subject incident despite having notice, time and opportunity to do so; in failing to reasonably and adequately discipline officers following violent incidents; in failing to give the plaintiff notice and/or warning; in causing and/or allowing the plaintiff to be injured; in causing and creating a dangerous condition conducive to causing injury; in causing and creating a dangerous and hazardous condition to exist; in creating and allowing a nuisance to exist; in failing to provide for the safety of the plaintiff; in failing to adequately train their officers; in failing to have trained personnel; that the above stated occurrence would not have occurred but for the negligence, in whole or in part, of the City, their officers, supervisors, deputies, commissioners, and other officials in their employ; in failing to protect the plaintiff in each and every instance set forth above; in causing, permitting and/or allowing the plaintiff to be assaulted, battered, threatened and menaced; in denying the plaintiff access to timely, due and adequate medical care for the injuries he suffered during the subject incident; in failing to fully, faithfully and reasonably provide the plaintiff was necessary medical care; and said defendants were otherwise negligent, careless and reckless in the instance.

69. Inasmuch as the officers, supervisors, staff and other officials were acting for, upon, and in furtherance of the business of the City of New York and within the scope of their employment, the City of New York is liable under the doctrine of *respondeat superior* for the tortious actions of said persons.

70. As a result of the foregoing, Plaintiff suffered and continues to suffer severe and serious physical, psychological and emotional injuries, violation of his civil and due process rights, and pecuniary loss.

**AS AND FOR A FIFTH CAUSE OF ACTION:
VIOLATION OF NEW YORK CONSTITUTION AND STATUTES**

71. Plaintiff repeats, reiterates and realleges each and every allegation of paragraphs “1” through “70”, inclusive, of this Complaint, as if same were fully set forth herein.

72. As set forth above, Plaintiff was deprived by defendants of his rights to free speech and association, to be free from gratuitous and excessive force and punishment, to be free from cruel and unusual punishment, to be free from false arrest and imprisonment, to be free from malicious prosecution; and to due process of law, as guaranteed to him by the Constitution and statutes of the City and State of New York and the Charter of the City of New York.

73. The aforesaid violations, and the failures of the City and its supervisory personnel to take appropriate steps to curb the widespread pattern of same or similar conduct by their officers violated Plaintiff’s rights under the New York State Constitution.

74. By their refusal to provide prompt medical attention to Plaintiff after he was injured, the defendants violated Plaintiff’s civil and statutory rights.

75. The defendants conduct complained of herein violated Plaintiff’s rights secured by the Constitution of the State of New York, Article 15 of the New York State Executive Law (“NYS Human Rights Law”), Section 40 *et seq.* of the New York State Civil Rights Law (the “NYS Civil Rights Law”), New York Corrections Law, and Sections 8-107 *et seq.*, 8-502 *et seq.* and 8-603 *et seq.* of the Administrative Code of the City of New York (the “City Human Rights Law”)

76. As a result of the foregoing, Plaintiff suffered and continues to suffer severe and serious physical, psychological and emotional injuries, as well as pecuniary loss.

**AS AND FOR A SIXTH CAUSE OF ACTION:
NEGLIGENT HIRING, TRAINING, SUPERVISION AND RETENTION**

77. Plaintiff repeats, reiterates and realleges each and every allegation of paragraphs “1” through “76”, inclusive, of this Complaint, as if same were fully set forth herein.

78. The City, its agents, servants, appointees and employees, were negligent, careless and/or reckless in the hiring, training, retention, supervision, direction, control, appointment and/or promotion of the their agents, servants and employees, including but not limited to the defendant officers, in that said employees lacked the experience and ability to be employed by the City and NYPD; in failing to exercise due care and caution in their hiring, appointment and promotion practices, and in particular, hiring individuals who lacked the mental capacity and ability to function as employees of said defendants; in that the defendant-employees lacked the maturity, sensibility and intelligence to be employed by said defendants; in that said defendants knew of the lack of ability, experience and maturity of the defendant-employees when they hired them; in that said defendants, their agents, servants and/or employees, failed to suspend and/or terminate the defendant-employee(s) when such action was either proper or required; and in being otherwise careless, negligent and reckless in the instance.

79. The failure of the City, its agents, servants, appointees and employees, to adequately train their agents, servants and employees, including but not limited to the defendant officers, in the exercise of their employment functions, and their failure to enforce the laws of the United States of America, State of New York and the Charter, rules and regulations of the City of New York, is evidence of the reckless lack of cautious regard for the rights of the public and

detainees in their custody and Plaintiff in particular, and exhibited a lack of that degree of due care which prudent and reasonable individuals would show.

80. The City knew or should have known in the exercise of reasonable care, the propensities of their agents, servants and employees, including but not limited to the defendant officers, to engage in the wrongful conduct heretofore alleged in this Complaint and failed to take corrective action.

81. The City knew or should have known that its policies, customs and practices, as well as their negligent hiring, retention, supervision, training, appointment and promotion of their agents, servants and employees, including but not limited to the defendant officers, created an atmosphere where the most prominent offenders felt assured that their most brazen acts of abuse, misconduct and neglect would not be swiftly and effectively investigated and prosecuted.

82. That the mistreatment and abuse of the plaintiff, as set forth above, was the reasonably foreseeable consequence of the City's negligent conduct.

83. The aforesaid acts of the City, its agents, servants, appointees and employees, resulted in the plaintiff being harassed, intimidated, assaulted, battered, falsely arrested, falsely imprisoned, falsely and maliciously prosecuted, denied medical treatment, his civil rights being violated, in failing to protect Plaintiff from known, foreseeable and/or preventable harms, and in the plaintiff being caused to suffer and continue to suffer severe physical, psychological and emotional pain and suffering, and in other respects were damaged.

84. As a result of the foregoing, Plaintiff suffered and continues to suffer severe and serious physical, psychological and emotional injuries, as well as pecuniary loss.

**AS AND FOR A SEVENTH CAUSE OF ACTION:
NEGLECT AND FAILURE TO PROVIDE MEDICAL TREATMENT**

85. Plaintiff repeats, reiterates and realleges each and every allegation of paragraphs “1” through “84”, inclusive, of this Complaint, as if same were fully set forth herein.

86. As set forth above, the City, its agents, servants and/or employees, knew that Plaintiff had sustained serious and significant physical injuries from the incidents alleged aforesaid.

87. Plaintiff made numerous complaints to the defendants that he was injured, that he was in a tremendous amount of pain, and that he was experiencing other serious ailments following the subject incidents; however, the defendants denied Plaintiff’s requests for medical treatment.

88. The defendants are the initial stewards of Plaintiff’s access to medical care – possessing, *inter alia*, exclusive or near-exclusive control and decision-making authority as to if, when and how Plaintiff is permitted access to medical care, as well as approving and securing transportation to take Plaintiff from the precinct or jail to an off-site medical provider.

89. By the aforesaid conduct and under the color of law, these defendants acted with malice, or at least deliberate indifference, in failing to timely secure the medical attention required for Plaintiff’s serious injuries, in a manner that deprived the Plaintiff of his constitutional, statutory and common law rights and perpetuated and exacerbated his physical and mental pain and suffering.

90. By the aforesaid conduct, these defendants were negligent, careless and reckless in failing to timely secure the medical attention required for Plaintiff’s serious injuries.

91. By failing to act, said defendants knowingly disregarded an excessive risk to Plaintiff's health and safety.

92. Any reasonable person would perceive Plaintiff's medical needs to be important and worthy of treatment.

93. As set forth above, the delay and/or denial of access to timely medical care by the defendants was intentional and punitive so as to cause the Plaintiff further physical injury, pain and suffering.

94. As set forth above, the delay and/or denial of access to timely medical care by the defendants was negligent and reckless so as to cause the Plaintiff further physical injury, pain and suffering.

95. As a direct and proximate result of said defendants' conduct, the plaintiff was caused to sustain further physical, psychological and emotional injuries, pain and suffering.

96. As set forth above, the acts and omissions committed by the defendants were the result of policies and customs drafted and/or promulgated by the City and/or NYPD.

97. The City was grossly negligent in supervising its subordinate staff and officers who committed the wrongful acts alleged herein.

98. The defendants failed to adequately investigate Plaintiff's claims of denied medical care and treatment.

99. The defendants failed to adopt policies and procedures that would have prevented the denial of medical care and treatment alleged herein.

100. The defendants knew that the pattern of abuse described above existed. Their failure to take measures to curb this pattern of conscious neglect constitutes acquiescence in the known unlawful behavior of its subordinates. The prevalence of these practices and general

knowledge of their existence, and the failure of the defendants to take remedial action despite the fact that the aforesaid conduct has been persistently brought to their attention, constitutes deliberate indifference to the rights and safety of Plaintiff.

101. The aforesaid acts of the defendants, their agents, servants and/or employees, were sufficiently serious to constitute violations of Plaintiff's statutory, civil and common law rights secured by the Constitution of the State of New York, as well as the New York Health Law, New York Corrections Law, New York Human Rights Law, New York Executive Law, and the common law of New York, and directly and proximately damage the claimant.

102. As a result of the foregoing, Plaintiff suffered and continues to suffer severe and serious physical, psychological and emotional injuries, as well as pecuniary loss.

**AS AND FOR AN EIGHTH CAUSE OF ACTION:
INTENTIONAL AND NEGLIGENT INFLECTION OF EMOTIONAL DISTRESS**

103. Plaintiff repeats, reiterates and realleges each and every allegation of paragraphs "1" through "102", inclusive, of this Complaint, as if same were fully set forth herein.

104. The aforesaid acts of the defendants, their agents, servants and employees, acting individually and/or in conjunction with the other defendants, were intentional, malicious and excessive, and served no reasonable or legitimate penological interest.

105. The aforesaid acts of the defendants, their agents, servants and employees, acting individually and/or in conjunction with the other defendants, were negligent and served no reasonable or legitimate penological interest.

106. The defendants' intentional, reckless and/or negligent infliction of emotional and mental distress constituted misconduct of an egregious and outrageous nature that exceeds all bounds usually tolerated by society and unreasonably endangered Plaintiff's physical safety.

107. As a result of the foregoing, Plaintiff suffered and continues to suffer severe and serious physical, psychological and emotional injuries, as well as pecuniary loss.

**AS AND FOR A NINTH CAUSE OF ACTION:
FAILURE TO PROTECT**

108. Plaintiff repeats, reiterates and realleges each and every allegation of paragraphs “1” through “107” inclusive, of this Complaint, as if same were fully set forth herein.

109. As set forth above, the defendants failed to protect Plaintiff from known and foreseeable harms, including themselves and each other.

110. As set forth above, the defendants caused and created the dangerous conditions which gave rise to the incidents and injuries alleged herein.

111. As set forth above, each of the defendant officers failed to intervene, mitigate and/or stop the subject incidents at any time during the happening of the incidents.

112. As set forth above, all defendants knew of and consciously disregarded excessive risks to Plaintiff’s security, health and safety.

113. That due to said defendants’ repeated failures to protect Plaintiff, he suffered and continues to suffer severe and serious physical, psychological and emotional injuries.

**AS AND FOR A TENTH CAUSE OF ACTION:
FALSE ARREST, FALSE IMPRISONMENT AND MALICIOUS PROSECUTION**

114. Plaintiff repeats, reiterates and realleges each and every allegation of paragraphs “1” through “113” inclusive, of this Complaint, as if same were fully set forth herein.

115. As set forth above, PO Sampath and PO John Does did falsely detain, arrest, and imprison Plaintiff

116. As set forth above, Defendant PO Sampath and PO John Does did maliciously prosecute Plaintiff.

117. That due to said defendants' conduct, Plaintiff suffered and continues to suffer severe and serious physical, psychological and emotional injuries, loss of liberty, and pecuniary loss.

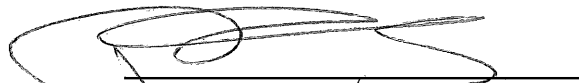
WHEREFORE, Plaintiff requests compensatory damages against all defendants in an amount to be determined at trial, punitive damages against the individual defendants in an amount to be determined at trial, attorney's fees, costs and disbursements pursuant to law, and such other and further relief as this Court deems just and proper.

Dated: Brooklyn, New York

October 21, 2015

Yours, etc.,

HELD & HINES, L.L.P.

A handwritten signature in dark ink, appearing to read 'Philip M. Hines', is written over a horizontal line.

By: Philip M. Hines, Esq.

Attorneys for Plaintiff

Office and P.O. Address

2004 Ralph Avenue

Brooklyn, New York 11234

(718) 531-9700

ATTORNEY VERIFICATION

PHILIP HINES, an attorney duly licensed to practice in the courts of the State of New York, hereby affirms the following under penalties of perjury, upon information and belief:

That I am a partner of the law firm of HELD & HINES, L.L.P., attorneys for Plaintiff **NAHMIR GLASS**, in the within action; I have read the foregoing COMPLAINT and know the contents thereof; the same is true to my own knowledge, except as to the matters therein alleged to be on information and belief, and as to those matters, I believe them to be true. The reason this Verification is made by me and not by the Plaintiff is that said Plaintiff does not reside within the County in which the Affirmant's office is located.

The grounds of my belief as to all matters stated upon my own knowledge are as follows; the records, reports, contracts, and documents contained in the Plaintiff's file.


PHILIP HINES, ESQ.

Affirmed to this 21st day
of October, 2015

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF BRONX

-----X Index No.:
NAHMIR GLASS,

Plaintiff,

- against -

CITY OF NEW YORK, POLICE OFFICER "JOHN"
SAMPATH, individually and in his official capacity,
POLICE OFFICERS "JOHN DOES 1-10", individually
and in their official capacities, fictitious names used to
identify presently unknown police officers,

Defendants.

-----X

SUMMONS AND VERIFIED COMPLAINT

HELD & HINES, LLP
Attorneys for Plaintiff(s)
Office & Post Office Address
2004 Ralph Avenue
Brooklyn, New York 11234
(718) 531-9700

Signature (Rule 130-1.1-a)



PHILIP M. HINES, ESQ.